

1 ENGROSSED SENATE
2 BILL NO. 63

By: Goodwin of the Senate

3 and

4 Johns of the House
5

6 An Act relating to school district boards of
7 education; amending 70 O.S. 2021, Section 5-118, as
8 amended by Section 1, Chapter 4, O.S.L. 2025 (70 O.S.
9 Supp. 2025, Section 5-118), which relates to board of
10 education meetings; removing language allowing
11 certain stipend only for boards of education of
12 certain size school districts; providing range of
13 stipend amount for certain board of education
14 members; updating statutory language; updating
15 statutory reference; and providing an effective date.

16 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

17 SECTION 1. AMENDATORY 70 O.S. 2021, Section 5-118, as
18 amended by Section 1, Chapter 4, O.S.L. 2025 (70 O.S. Supp. 2025,
19 Section 5-118), is amended to read as follows:

20 Section 5-118. A. Regular meetings of the board of education
21 of each school district shall be held upon the first Monday of each
22 month, or upon such day as may be fixed by the board. Special
23 meetings may be held from time to time as circumstances may demand.

24 B. All meetings of the boards of education shall be public
meetings, and in all such meetings the vote of each member ~~must~~
shall be publicly cast and recorded. Executive sessions ~~will~~ shall
be permitted only for the purpose of discussing the employment,

1 hiring, appointment, promotion, demotion, disciplining, or
2 resignations of any or all of the employees or volunteers of the
3 school district, ~~and~~ for the purpose of discussing negotiations
4 concerning employees and representatives of employee groups, and for
5 the purpose of hearing evidence and discussing the expulsion or
6 suspension of a student or students only when requested by the
7 student involved or his or her parent, attorney, or legal guardian;
8 provided, however, that any vote or action thereon ~~must~~ shall be
9 taken in a public meeting with the vote of each member publicly cast
10 and recorded. ~~It is required that the~~ The board of education shall
11 provide notice to the student, his or her parent, attorney, or legal
12 guardian that ~~said~~ the student is entitled to an executive session
13 regarding the discussion of his or her expulsion or suspension ~~of~~
14 ~~said student.~~

15 C. Any action taken in violation of the provisions of ~~this act~~
16 Section 5-101 et seq. of this title shall be invalid.

17 D. Each member of the board of education of a school district
18 ~~with an average daily attendance exceeding fifteen thousand (15,000)~~
19 ~~or a school district where boundaries encompass a total population~~
20 ~~exceeding one hundred thousand (100,000) persons according to the~~
21 ~~last preceding Federal Decennial Census~~ may be paid from the
22 district's general fund a stipend ~~of~~ from Twenty-five Dollars
23 (\$25.00) up to One Hundred Ninety Dollars (\$190.00) for each
24 regular, special, or adjourned meeting of the board of education

1 that he or she attends, but not for more than four meetings in any
2 calendar month.

3 E. 1. Unless otherwise provided by law, a board of education
4 may submit an Affidavit of Board Action to the State Department of
5 Education in lieu of approved board minutes to provide proof of an
6 action approved or taken at a board meeting. Such affidavit shall
7 be signed and sworn by the applicable personnel as provided in
8 paragraph 2 of this subsection. The State Department of Education
9 shall accept a signed Affidavit of Board Action as certification
10 that the district board has approved or taken a specific action at a
11 board meeting. Nothing in this subsection shall exempt a board of
12 education from keeping minutes of a meeting in accordance with
13 Section 312 of Title 25 of the Oklahoma Statutes.

14 2. The Affidavit of Board Action described in paragraph 1 of
15 this subsection shall include:

- 16 a. the county or district code,
- 17 b. the name of the school district,
- 18 c. the date of the board meeting,
- 19 d. the agenda item number approved,
- 20 e. a summary of the action approved,
- 21 f. an affirming signature representing the district from
22 the district superintendent or the assistant
23 superintendent, and
24

g. an affirming signature representing the district board from the board president or chair, or from a board officer.

SECTION 2. This act shall become effective November 1, 2026.

Passed the Senate the 24th day of March, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the ____ day of _____,
2026.

Presiding Officer of the House
of Representatives